26STCV01188 26STCV01188

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCV01188 Hearing Date: July 22, 2026 Dept: 833

Venice Investments Group, LLC Case No. 26STCV01188

Hearing:

July 22, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

HSA Holdings, LLC, et. al. Judge: Joseph Lipner

[Tentative] Order on

Application for Writ of Attachment

INTRODUCTION

Plaintiff Venice Investments Group, LLC (“Plaintiff”) moves for a writ of attachment against Defendant HSA Holdings, LLC (“Defendant”) in the amount of $270,947.38.

The Court GRANTS the writ of attachment, in the reduced amount of $263,447.38.

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Pro. § 484.010.) “Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars ($500) exclusive of costs, interest, and attorney's fees.” (Code Civ. Pro. § 483.010.)

The court shall issue a right to attach order if the court finds all of the following:

(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Pro. § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 481.190.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.”¿(Code Civ. Pro. § 484.030.)¿“In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of¿the probable outcome of the litigation.”¿ (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 80.) “The Attachment Law statutes are subject to strict construction.” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

DISCUSSION

A. Probable Validity of Plaintiff's Claim

The application is based on Plaintiff's cause of action for (1) intent to hinder, delay, or defraud a creditor; (2) constructive fraudulent transfer – no reasonably equivalent value received; and (3) constructive fraudulent transfer – insolvency.

The requested attachment arises from a voidable transfer made by transferor Defendant Alborz Ardalan to Defendant HSA Holdings, with the actual intent to hinder, delay, or defraud Plaintiff in violation of California's Uniform Voidable Transactions Act.

Defendant Ardalan executed a written personal Guaranty of Lease and another personal Guaranty of Lease. (Ayala Decl. ¶ 8.) The Guaranties were issued in connection with two certain written leases for the premises located at 18567 Sherman Way, Reseda, CA 91335 and 18569-18573 Sherman Way Reseda, CA 91335. (Ayala Decl. ¶ 9.)

The Tenant, Defendant A1 Liquidator, LLC, failed to pay all rent and other sums due under the Leases when due even though Plaintiff had performed all of its obligations under the Leases and the Guarantees. (Ayala Decl., ¶ 11.)

Plaintiff demanded that Tenant and Ardalan pay the past due sums owed under the leases and Ardalan's guaranties. (Ayala Decl., ¶ 12.) Plaintiff expressly advised Ardalan that the amounts due were immediately payable, that the indebtedness arose from the written Leases and Guaranties, and that, absent prompt payment, litigation would be commenced to enforce the Leases and Guaranties. (Ayala Decl., ¶ 12.) Despite these demands and requests, neither Tenant nor Ardalan remitted payment. (Ayala Decl., ¶ 13.)

After receiving the demand for payment from Plaintiff, Defendant Ardalan transferred the property commonly referred to as 20752 Bermuda Street, Chatsworth, CA 91311 to Defendant HSA Holdings, LLC. (Ayala Decl., ¶ 17.) Ardalan himself created HSA Holdings, LLC. (Ayala Decl., ¶ 10.) The proximity between the formation of HSA

Holdings and Ardalan's transfer supports the inference that the entity was created for the purpose of receiving title to the property. (Wainer Decl., ¶ 14.) Ardalan received no consideration for transferring the property. (Wainer Decl., ¶ 12.)

Plaintiff had previously obtained a writ of attachment against Ardalan arising out of the indebtedness Ardalan guaranteed. (Ayala Decl., ¶ 6.) Under the Uniform Voidable Transactions Act, a creditor may obtain provisional remedies, including an attachment against a transferred asset or its proceeds. (Civil Code § 3439.07, subd. (a)(2).) The timing of the transfer—after the debt was incurred and while collection efforts were pending—together with

The evidence before the Court indicates that Defendant Ardalan moved the Chatsworth, CA property to the control of Defendant HSA Holdings, LLC to put it beyond the already existing writ of attachment.

Defendant HSA Holdings, LLC filed no opposition with any contradictory information. Therefore, Plaintiff has established the probable validity of their claim.

B. Basis for Attachment

"[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars ($500) exclusive of costs, interest, and attorney's fees." (Code Civ. Pro. § 483.010, subd. (a).) "An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement …." (Code Civ. Pro. § 483.010, subd. (b).) "[A]n attachment will lie upon a cause of action for damages for a breach of contract where the damages are readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite." (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App. 4th 537, 541.)

Here, Plaintiff's application

for writ of attachment is based on an underlying debt based on a personal Guaranty of Lease. (See Complaint ¶¶ 10-20; Ayala Decl., ¶¶ 6-13.) There is no evidence that the claim is secured by an interest in real property and the damages appear to be readily ascertainable by reference to the evidence provided by Plaintiff.

C. Purpose and Amount of Attachment

Code of Civil Procedure section 484.090 states that the Court shall issue a right to attach order if "the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based . . . [and] the amount to be secured by the attachment is greater than zero." Plaintiff satisfied these requirements. (See Application ¶ 4.)

D. Reduction of Amount to be Secured

Code of Civil Procedure section 483.015, subd. (b) provides that the amount to be secured by the attachment shall be reduced by, inter alia: "(2) The amount of any indebtedness of the plaintiff that the defendant has claimed in a cross-complaint filed in the action if the defendant's claim is one upon which an attachment could be issued." Defendant has the initial burden of proof to satisfy the requirements of attachment for any offset claim. (See Code Civ. Pro. § 483.015 and Lydig Construction, Inc. v. Martinez Steel Corp. (2015) 234 Cal.App.4th 937, 945.) Among other requirements, "the contract sued on must furnish a standard by which the amount due may be clearly ascertained and there must exist a basis upon which the damages can be determined by proof.'" (See CIT Group/Equipment Financing, Inc., supra, 115 Cal.App.4th at 541.)

Defendant HSA Holdings, LLC has not submitted an opposition, so has not satisfied the requirement to show any offset claim.

E. Exemptions

Defendant HSA Holdings, LLC has not submitted an opposition so has not claimed any exemptions.

F.
Undertaking

Code of Civil Procedure section 489.210 requires the plaintiff to file an undertaking before issuance of a writ of attachment. Code of Civil Procedure section 489.220 provides, with exceptions, for an undertaking in the amount of $10,000. Plaintiff has not yet filed an undertaking at the time of the application, but must do so.

G.
Subject Property

Plaintiff requests attachment of any property of Defendant HSA Holdings, LLC. (Application ¶ 9a.) That request is proper. "[A]ll corporate property for which a method of levy is provided by Article 2 (commencing with Section 488.300) of Chapter 8" may be attached. (Code Civ. Pro. § 487.010, subd. (a).)

H.
Attorneys Fees

Code of Civil Procedure section 482.110, subd. (b) provides, "[i]n the discretion of the court, the amount to be secured by the attachment may include an estimated amount for costs and allowable attorney's fees."

The amount to be secured by attachment includes attorneys fees of $7,500.00. The Court declines to consider attorneys fees at this time.

CONCLUSION

The Court GRANTS the writ of attachment, in the reduced amount of $263,447.38.

IT IS SO ORDERED.

Dated: July 22,
2026

____

Joseph Lipner

Superior
Court Judge